



U.S. Department
of Transportation

Research and
Special Programs
Administration

MAY 4 2000

400 Seventh Street, S.W.
Washington, D.C. 20590

DOT-E 12407

EXPIRATION DATE: April 15, 2001

(FOR RENEWAL, SEE 49 CFR § 107.109)

1. GRANTEE: Qual-X, Inc.
Powell, Ohio
2. PURPOSE AND LIMITATION:
 - a. This exemption authorizes the one-time transportation in commerce of three electronic leak detectors, each containing approximately 2 Curies of radioactive krypton-85 gas as a tracer in nitrogen gas. The leak detector consoles serve as packaging equivalent to a Type A packaging for radioactive material. This exemption provides no relief from any Hazardous Materials Regulations (HMR) other than as specifically stated herein.
 - b. The safety analyses performed in development of this exemption only considered the hazards and risks associated with transportation in commerce.
3. REGULATORY SYSTEM AFFECTED: 49 CFR Parts 106, 107 and 171-180.
4. REGULATIONS FROM WHICH EXEMPTED:
 - a. The definition for "Type A package" of 49 CFR § 173.403 in that a package which has not been tested in accordance with the provisions of §§ 173.410, 173.412, 173.465, and 173.466 is authorized as a Type A package.
 - b. 49 CFR § 173.415 in that a non-specification packaging is authorized for transportation of a Type A quantity of radioactive materials.
5. BASIS: This exemption is based on the application of Qual-X, Inc. dated December 1, 1999 submitted in accordance with § 107.105 and the public proceeding thereon.

MAY 4 2000

Continuation of DOT-E 12407

Page 2

6. HAZARDOUS MATERIALS (49 CFR § 172.101):

Proper Shipping Name/ Hazardous Materials Description	Hazard Class/ Division	Identi- fication Number	Packing Group
Radioactive material, n.o.s.	7	UN 2982	N/A

7. SAFETY CONTROL MEASURES:

a. PACKAGING -

(1) The packagings are the leak detector consoles. The radioactive gas in each console must be at no more than 40 psi and contained in a lead shielded steel gas cylinder that is ASME-rated for 2000 psi.

(2) The leak detector consoles and any sensitive inner components must be blocked and braced to prevent shifting during transport.

b. OPERATIONAL CONTROLS -

(1) The shipment must be in a dedicated, closed motor vehicle, operated under exclusive use controls, with Qual-X providing the exclusive use instructions to the carrier as specified in 49 CFR § 173.403.

(2) All procedures and controls described in the Qual-X application dated December 1, 1999 must be followed.

8. SPECIAL PROVISIONS:

a. This exemption is issued for a single shipment from Mountain View, CA to the Qual-X facility in Powell, OH.

b. MARKING - Each package must be plainly and durably marked "Radioactive material, n.o.s., UN 2982", "DOT-E 12407".

c. Qual-X must prepare and provide to the carrier a description of the potential hazards of the materials transported under this exemption, and suggested response actions to be taken by the vehicle operator and emergency responders in the event of an accident during transportation.

MAY 4 2000

Continuation of DOT-E 12407

Page 3

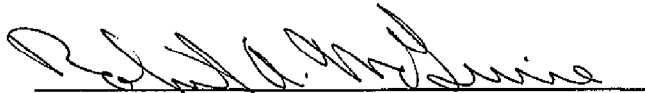
9. MODES OF TRANSPORTATION AUTHORIZED: Motor vehicle.
10. MODAL REQUIREMENTS -
- a. A copy of this exemption must be carried aboard the motor vehicle.
 - b. The shipment must be made over the most direct, low accident routes, such as the interstate highways.
11. COMPLIANCE: Failure by a person to comply with any of the following may result in suspension or revocation of this exemption and penalties prescribed by the Federal hazardous materials transportation law, 49 U.S.C. 5101 et seq:
- o All terms and conditions prescribed in this exemption and the Hazardous Materials Regulations, 49 CFR Parts 171-180.
 - o Registration required by § 107.601 et seq., when applicable.

Each "Hazmat employee", as defined in § 171.8, who performs a function subject to this exemption must receive training on the requirements and conditions of this exemption in addition to the training required by §§ 172.700 through 172.704.

No person may use or apply this exemption, including display of its number, when this exemption has expired or is otherwise no longer in effect.

12. REPORTING REQUIREMENTS: The carrier is required to report any incident involving loss of packaging contents or packaging failure to the Associate Administrator for Hazardous Materials Safety (AAHMS) as soon as practicable. (Sections 171.15 and 171.16 apply to any activity undertaken under the authority of this exemption.) In addition, the holder(s) of this exemption must inform the AAHMS, in writing, of any incident involving the package and shipments made under the terms of this exemption.

Issued in Washington, D.C.:



Robert A. McGuire
Acting Associate Administrator for
Hazardous Materials Safety

MAY 4 2000

(DATE)

Address all inquiries to: Associate Administrator for Hazardous
Materials Safety, Research and Special Programs Administration,
Department of Transportation, Washington, D.C. 20590.
Attention: DHM-31.

The original of this exemption is on file at the above office.
Photo reproductions and legible reductions of this exemption are
permitted. Any alteration of this exemption is prohibited.

Copies of exemptions may be obtained from the AAHMS, U.S.
Department of Transportation, 400 7th Street, S.W., Washington,
DC 20590-0001, Attention: Records Center, 202-366-5046.

PO: WCarriker